IN THE COURT OF THE DISTRICT JUDGE, JODHPUR
REGULAR FIRST APPEAL NO. 62 OF 2024
(Under Section 96 of the Code of Civil Procedure, 1908)

Smt. Pushpa Devi Rathore,
W/o Shri Bhanwar Singh Rathore, aged about 52 years,
R/o 118, Sardarpura, Jodhpur - 342003
... Appellant

Versus

Shri Girdhari Lal Sharma,
S/o Shri Shyam Lal Sharma, aged about 65 years,
R/o 9, Paota, Jodhpur ... Respondent

MEMORANDUM OF APPEAL

The Appellant respectfully submits this appeal against the judgment and decree dated 30/11/2023 passed by the learned Civil Judge (Junior Division), Jodhpur in Civil Suit No. 145 of 2019, whereby the suit of the Appellant for specific performance of an agreement to sell dated 05/06/2018 was dismissed, on the following grounds:

GROUNDS OF APPEAL

1. That the learned trial court erred in holding that the Appellant was not ready and willing to perform her part of the contract, when the evidence of PW-1 and the receipt at Ex. 4 established payment of earnest money of Rs. 5,00,000/-.

2. That the learned trial court misread Section 16(c) of the Specific Relief Act, 1963 and placed the burden wrongly on the Appellant.

3. That the finding on the issue of limitation is perverse and contrary to the material on record.

4. That the judgment and decree are otherwise bad in law.

Valuation of the appeal: Rs. 32,00,000/-
Court fee of Rs. 3,20,000/- has been paid on the memorandum.

PRAYER

It is prayed that the judgment and decree dated 30/11/2023 be set aside and the suit of the Appellant be decreed with costs throughout.

Jodhpur Advocate for the Appellant
Dated: 22/01/2024 Shri Om Prakash Vyas